GoldKach
Unlocking Global Investments

INVESTMENT MANAGEMENT AGREEMENT

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FULL TERMS AND CONDITIONS

These Terms and Conditions are part of the Investment Management Agreement (IMA), which governs your Account with GoldKach and the portfolio management services we provide. The IMA includes these Terms, the attached Schedules, your Account Application, your most recent approved Investment Policy Statement (IPS), and the Fee Schedule. Capitalised terms are defined within these documents, and any not defined here follow the meaning in your Application. References to "you" or "your" include all applicants, and for non-individual applicants, also include the Authorised Individuals listed in the Application. Words in singular also include plural, and vice versa.

1. Asset Under Management (AUM)

Once your account is approved (the "Effective Date"), you agree to provide funds for GoldKach to manage on a discretionary basis, according to the terms of the Investment Management Agreement. You can also add more funds after this date. All assets managed under this agreement are called your "Assets Under Management." The minimum required value for these assets is $1,000 unless we agree otherwise in writing. GoldKach may change this minimum but will give you at least 60 days' notice. If your account balance falls below the minimum due to withdrawals, we may, at our discretion, sell or transfer your assets and terminate the agreement.

2. Services Provided

GoldKach will manage your Assets Under Management by buying, selling, or redeeming liquid broad market equities which may include Real Estate Investment Trusts (REITs), individual stocks, Exchange Traded Funds and other assets we may structure to fit your Investment Policy Statement (IPS), following the terms of the Investment Management Agreement and any other relevant documents you provide, and we accept in writing. You agree to inform us immediately, in writing or by email, of any changes to the information you have previously provided.

3. Discretionary Authority

You grant GoldKach full authority to manage your Assets Under Management, allowing us to buy, sell, or redeem investments for your account without needing to notify you or obtain your consent for each individual transaction. Your portfolio may include Real Estate Investment Trusts (REITs), Exchange Traded Funds (ETFs), and broad market equities from markets such as the UK, US, Hong Kong, and other global regions where opportunities arise. Additionally, you authorise us to handle all necessary documentation, instructions, and actions needed to complete portfolio transactions and manage any corporate changes related to the assets in your account.

4. Investment Policy Statement

You confirm that all information provided in your Investment Policy Statement (IPS), including any updates made over time, is accurate and complete. GoldKach will rely on the information in your IPS to manage your investments under the terms of the Investment Management Agreement. If your personal or financial circumstances change, if there are any new restrictions on trading, or if any other factor arises that could affect how we manage your assets, you must inform us immediately in writing through an Amendment Notice. Once we receive this notice, we will review the changes and decide whether to continue managing your assets and whether we require additional instructions or information from you. We may also ask you to complete and sign a new IPS, even if you haven't submitted an Amendment Notice. If you fail to provide a new IPS when requested, we reserve the right to terminate the Investment Management Agreement immediately.

5. **Investment Strategy: Long-Term Growth & Capital Preservation**

GoldKach's core investment philosophy centres on delivering sustainable long-term growth while ensuring prudent capital preservation. Our strategy involves a disciplined, patient approach to holding high-quality investments over time, underpinned by thorough market analysis and a focus on global growth sectors. We actively manage your portfolio with a strategic rebalancing framework designed to optimise returns and mitigate undue risks. During periods of market volatility or when economic indicators suggest heightened risks to your capital, we adopt a defensive posture. This may involve temporarily reallocating assets into more stable instruments such as cash or money market funds, which serve as a safeguard for your portfolio. Our dynamic asset allocation process ensures that your investments are protected during adverse market conditions while remaining well-positioned to capitalise on opportunities when stability returns. Once markets recover, we systematically reinvest into growth assets aligned with your investment objectives, thereby maintaining momentum towards achieving your financial goals. This dual focus on long-term growth and capital preservation ensures that we not only seek to enhance your wealth over time but also protect it from significant losses, enabling a smoother investment journey through various market cycles.

6. **Proper Use**

If you use your account for any illegal or improper purpose, GoldKach has the right to close your account immediately without prior notice. We may also place a temporary hold on your account while we investigate any suspected misuse. Furthermore, we may refuse to allow you to open a new account or continue using an existing one if we believe it is being misused. You agree to compensate us for any losses we incur as a result of illegal or improper use of your account. It is your responsibility to take all reasonable steps to protect your account from fraud or unauthorised access. GoldKach actively works to prevent financial crimes such as money laundering, terrorist financing, bribery, corruption, tax evasion, and violations of economic or trade sanctions. As part of our commitment to global compliance, we expect you to also comply with all relevant financial crime laws and to use your account in a lawful and responsible manner.

7. **Standard of Care**

As we manage your investments, you can expect us to apply the care, diligence, and skill of a prudent and experienced professional, acting under similar circumstances and in similar market conditions. We are committed to managing your portfolio fairly, responsibly, and in good faith, and always in line with the investment strategy we have agreed upon with you. In addition, we follow well-defined policies, as outlined in Schedule "A", to ensure that investment opportunities are shared fairly among all client accounts. You acknowledge receipt of these policies and understand that while they may be updated from time to time, our commitment to treating each client equitably remains unchanged.
It's important to recognise that while we aim to manage your assets effectively and in alignment with your specific goals, investing naturally involves risks. Neither GoldKach, nor any of our affiliates or team members, can guarantee investment results or eliminate market risks. We cannot be held responsible for any losses you may experience, unless they arise directly from our gross negligence or intentional misconduct. These potential losses may come from changes in the markets, unforeseen events, or missed opportunities, and may be direct or indirect in nature. While we always aim to protect and grow your investments, we cannot be held liable for losses beyond our control, including those caused by natural disasters, political unrest, system failures, or other extraordinary events. Our primary aim is to manage your investments thoughtfully, with your best interests at heart, and in accordance with the strategy we've tailored to your needs and preferences. We appreciate your understanding that all investments carry some degree of uncertainty, and we remain dedicated to navigating these challenges with care.

8. Class Actions and Other Litigation

You acknowledge that GoldKach's services do not include providing legal advice, support, or notices regarding any legal claims or class actions related to your account or the assets held within it. We are not obligated to inform you of any legal action, even if we become aware of it. If we do notify you, it is purely as a courtesy, and we are not required to investigate, verify, or provide further details about the legal matter. It is entirely your responsibility to take any steps needed to understand, protect, or pursue your interests in any such legal action, including decisions about whether to participate or make a claim. Additionally, you are responsible for keeping your account statements, as these may be needed if you choose to engage in any legal proceedings related to your investments.

9. Fees

You agree to pay us fees for both the Investment Management and Custodial Services as outlined in our Fee Schedule, which may be revised from time to time with prior notice. These fees are based on your specific investment mandate, which we determine using your Investment Policy Statement (IPS), and they may change if your mandate is updated. In addition to these fees, you are responsible for any applicable taxes, government or regulatory charges, brokerage commissions, legal fees, and any other expenses related to your account. Our standard management fee is 2.0% per annum on the value of your Assets Under Management, charged quarterly at a rate of 0.5%. Additionally, we may charge a performance fee if your portfolio's value exceeds a pre-agreed high watermark. This means the performance fee only applies to gains above the highest previous value your portfolio has reached, ensuring you are only charged for new growth beyond that level. Fees apply solely to the management of your account and do not include costs for other services or accounts you may have with GoldKach or its affiliates. If any fees are unpaid, you authorise us to deduct them from your account or to sell assets as needed to settle any outstanding amounts.

10. Custodian

GoldKach, and any delegated portfolio managers, must keep client assets separate from their own by holding them with an independent custodian. Details about the custodian and its services are provided in Schedule “F”.

11. Account Statements and Other Records

GoldKach will provide you with quarterly Account Reports, annual performance and fee reports, and other required documents (together, "Records"). You may request monthly Account Reports if preferred. Records are delivered via email, with your electronic contact details collected during onboarding. You are expected to review each Record promptly. If you do not raise any issues in writing within 30 days, the Records will be considered accurate, and GoldKach will not be liable for any related errors or issues, except in cases of gross negligence or intentional misconduct. You must inform GoldKach immediately if you become aware of any potential errors or fraud. Failure to do so may result in you bearing responsibility for avoidable losses. If your actions or inactions lead to a loss, GoldKach and its affiliates are not responsible. GoldKach’s records are admissible as evidence in legal proceedings, even if they are not originals or in written form.

12. Notices

All notices under the Investment Management Agreement must be in writing or sent as a fully signed email. Notices can be delivered personally, by mail, or emailed to info@goldkach.com or the GoldKach office at:

GoldKach
Plot 90 Kanjokya Street, 3rd Kanjokya House
P.O. Box 500094
Kampala, Uganda

Receipt of notice is considered as follows:

- Personal delivery: Same Business Day if received during business hours; otherwise, the next Business Day.
- Registered mail: The Business Day after we receive it, based on postal evidence.
- Regular mail: Five Business Days after mailing within the UK, otherwise upon actual receipt.
- Email: At the time the email is sent.

13. Assignment and Delegation

You cannot transfer (assign) the Investment Management Agreement to anyone else without GoldKach's written consent. GoldKach may assign its rights and obligations under the Agreement to a Subsidiary or Affiliate without your consent, but with 30 days' prior notice. GoldKach may also delegate its duties, including discretionary authority, to a third party (including Subsidiaries or Affiliates) without your consent. GoldKach remains responsible for any advice given by such third parties as if it were given directly by GoldKach.

14. Power of Attorney

You authorise GoldKach as your legal representative (attorney-in-fact), with full authority to open brokerage accounts with any third-party dealer, including GoldKach Investment Funds or its Subsidiaries or Affiliates, as needed to manage your assets. GoldKach may sign documents and take necessary actions on your behalf to establish these accounts.

15. Client Information Consent

You agree to the collection, use, and disclosure of your information as outlined in Schedule "C", which you confirm you have received.

16. Authority to Enter into the Investment Management Agreement

You confirm that, if you are an individual, you are at least 18 years old and legally capable of entering into and fulfilling the Investment Management Agreement. If you are a corporation, partnership, trust, or other organisation, you represent that you have the legal power and capacity to enter into the Agreement and carry out its terms. You also confirm that all necessary actions have been taken to duly authorise the signing and delivery of the Agreement.

17. Notice of Termination

You may terminate the Investment Management Agreement by giving us written notice, which takes effect once we receive it, except for transactions already in progress. We may terminate the Agreement by giving you at least 30 days' written notice, or immediately without notice if you breach any terms, provide incorrect information, or in other situations outlined in the Agreement. Termination does not affect any obligations or liabilities incurred before it takes effect, and clauses on liability and indemnification will still apply. After termination, we are not required to take any action regarding your Account, including liquidating it, but may complete any pending transactions and retain sufficient funds to do so. If we terminate the Agreement, we will generally sell or redeem your assets and pay you the proceeds, unless we agree to follow your transfer instructions. We may take up to 6 months to complete this process or up to 3 months for transfers or other asset dispositions.

18. Joint Accounts

If you have a joint Account (not applicable to corporations, trusts, or other non-individual entities), you agree that we may act on instructions from any one of you without notifying the others. These instructions, including deposits or withdrawals, are binding on all joint Account holders and their legal successors. The Primary Applicant's details will be used for all communications, and anything sent to them fulfils our duty to all joint holders. All joint Account holders are jointly and individually responsible for any obligations under the Agreement. This means we may recover the full amount owed from the Account, regardless of which holder owes it. If a joint Account holder dies, their estate remains liable for any outstanding obligations.

19. Unclaimed Property

If your Account or its assets are considered unclaimed under applicable laws or our internal policies, we may handle them according to those rules, which may change. This could include transferring unclaimed property to government agencies, using your personal and account information to try to contact you, or disclosing this information to third parties or public databases to locate you. We will only treat your property as unclaimed if we reasonably believe it is, such as when communications are returned undelivered, you fail to respond to requests, or payments remain unclaimed. You agree to cover any costs we incur in managing unclaimed property, as allowed by law. To reclaim unclaimed property, you (or your heirs or successors) must meet our requirements, such as proving ownership, confirming identity, and indemnifying us before we release the property.

20. Policy on Death or Incapacity

If you are an individual (not a corporation, trust, or other entity), you agree that once we receive notice of your death or mental incapacity, we will stop actively managing your assets, except to preserve their value. We won't act on instructions from anyone claiming to represent you until they provide legal documents, we find acceptable, such as probate or letters of administration. You also agree to give us at least 3 months' written notice if you wish to withdraw any of your assets, unless the withdrawal is due to terminating the agreement under section 18 of the Terms and Conditions.

21. Indemnity

You agree to indemnify and hold harmless GoldKach, its Subsidiaries, Affiliates, and related parties from losses that arise your breach of the Investment Management Agreement, or any wrongful conduct by you or someone you're responsible for. This does not apply to losses caused solely by GoldKach's gross negligence or intentional misconduct. You also agree to assist us in defending any claims or legal actions. This indemnity is in addition to any others you've provided and continues even after the Agreement ends.

22. Amendment

We may make changes to the Investment Management Agreement by giving you written notice at least 30 days before the changes take effect. However, if a change is required by law or regulation, we may amend the Agreement without prior notice.

23. Term

The Investment Management Agreement has a term of 10 years and will remain in effect from the Effective Date unless it is terminated earlier in accordance with section 17 of the Terms and Conditions.

24. Conflict of Interest

While providing services to you, there may be occasions where our interests could conflict with yours. We believe in being transparent about such situations and ensuring you are fully informed. We are committed to acting in your best interests and are required to take reasonable steps to identify and address any actual or potential significant conflicts of interest. In some cases, we may need to provide you with details about these conflicts and obtain your consent before proceeding with certain transactions. More information about possible conflicts of interest related to our services is provided in the Conflicts of Interest Disclosure, included as Schedule "D" in these Terms and Conditions, which you acknowledge having received.

25. Risk of Borrowing

If you have borrowed money to invest in the assets we manage for you, please be aware that this involves higher risk than investing with your own funds. This is because you must still repay the loan according to its terms, even if the value of your investments decreases. Further details about the risks of borrowing to invest are provided in Schedule "E" of these Terms and Conditions, which you confirm you have received.

26. Additional Information about your Relationship with GoldKach

As part of establishing our relationship with you, we want to ensure you are fully informed about key aspects of how we work together. Our regulators require us to share specific details about our relationship, which are outlined in Schedule "F" of these Terms and Conditions. This schedule provides important supplementary information to what is already covered in the Investment Management Agreement. We encourage you to read it carefully, as it contains valuable insights into your relationship with us.

27. Compliance with Law

You acknowledge that both GoldKach and any of its Subsidiaries or Affiliates involved in providing investment management services must comply with the laws of the countries in which they operate. This includes regulations aimed at preventing money laundering, terrorist financing, and engaging with sanctioned individuals or entities. To meet these legal obligations, we or our affiliates may, at our sole discretion, take necessary actions such as refusing, delaying, or reversing your instructions, and investigating any related information. You agree that neither GoldKach nor its Subsidiaries or Affiliates will be held liable for any direct or indirect losses or damages you may incur as a result of delays or actions taken to comply with such legal requirements.

28. General Terms Entire Agreement

The Investment Management Agreement is the full and final agreement between you and us, replacing any previous written or verbal agreements on the same subject—except for changes made in line with these Terms and Conditions. If there is any conflict between the Terms and the attached schedules, the Terms will take precedence unless a schedule specifically states otherwise. If any part of the Agreement becomes invalid or unenforceable under local laws, the rest of the Agreement will remain valid in that jurisdiction. The Agreement, and all matters related to your Account, are governed solely by the laws of Uganda. For joint Accounts, it is governed by the Capital Markets Act of Uganda and the laws of the country where the Primary Applicant resides, based on our latest records. Both parties agree to the exclusive jurisdiction of the courts in that country, including courts handling appeals. The Agreement is legally binding on both parties and their legal successors.

Schedule "A": Policies for the Fair Allocation of Investment Opportunities among Managed Accounts

We are committed to treating all clients fairly when managing investment opportunities. No client will be given an unfair advantage. If it's not possible to satisfy all accounts fully, we will allocate opportunities proportionally, taking into account each client's investment policies, guidelines, and practical trading considerations.

Schedule "B": Client Information Consent

This schedule explains how GoldKach collects, uses, and shares your information, including personal and tax details, and the information of any Connected Persons (such as guarantors or trustees). By using our services, you agree that we, and our affiliates, may handle your information as required by law and in accordance with the General Data Protection Regulation (GDPR) and the Data Protection and Privacy Act of 2019 (Uganda)

1. **Collection and Use**:
   We may collect your information from you, those acting on your behalf, or public sources. This information is used for providing services, complying with legal obligations, managing financial crime risks, collecting fees, conducting credit checks, and for internal purposes like improving services.
2. **Sharing Information**:
   Your information may be shared with members of GoldKach, service providers, authorities, financial institutions, and others involved in delivering services or meeting compliance requirements. This may include countries with different data protection laws.
3. **Your Responsibilities**:
   You must keep your information up to date and inform Connected Persons that you've shared their information with us. If you do not provide requested information or withdraw consent, we may not be able to provide services and may have to close your account.
4. **Financial Crime Compliance**:
   We are required to detect and prevent financial crime. This may involve delaying or refusing transactions to meet legal obligations. We are not liable for any losses resulting from these actions.
5. **Tax Compliance**:
   You are responsible for understanding and fulfilling your tax obligations. GoldKach does not provide tax advice and is not liable for your tax matters.
6. **Data Protection**:
   Your data is protected under GDPR but may be accessible to authorities in other countries where legally required.
7. **Marketing Consent** (optional):
   You may allow us to use your information to offer products and services from GoldKach or select third parties. You can withdraw this consent at any time without affecting your access to other services.
8. **Recordings**:
   We may record phone calls and electronic communications to confirm your instructions and monitor service quality.
9. **More Information**:
   You can request a copy of our full GDPR Policy or access/correct your personal data by contacting us.

Schedule "C": Conflicts of Interest Disclosure

This schedule provides important information about potential and actual conflicts of interest that may arise in the course of our business relationship with you. It is part of our duty—under both our own policies and regulatory requirements like the Financial Services and Markets Act 2000 (FSMA)—to identify, manage, and, where necessary, disclose these conflicts to you.

1. **General Approach**
   We strive to avoid or manage conflicts of interest wherever possible. Where they cannot be avoided, we have policies and procedures in place to control or disclose them, ensuring your interests are protected.
2. **Potential Conflicts**
   Conflicts may arise due to our relationship with other members of the GoldKach Group, including situations where we recommend or transact in investment products that are managed, advised, or distributed by us or our affiliates. Some of these funds may carry the "GoldKach" name, making the connection clear, but we will provide additional disclosure where needed. Conflicts may also arise when we act on both sides of a transaction or when related entities are involved in services to your account—for example, through principal trades or through capital raising by a GoldKach affiliate.
3. **Compensation Practices**
   We may receive compensation from multiple sources, including:
   - Fees you pay directly to us
   - Commissions or trailing fees from mutual funds
   - Business referral fees
   - Fees or spreads related to transactions or services provided by us or our affiliates, such as currency conversions, brokerage, or interest on cash holdings

Where required, we will disclose these payments to you in writing.

4. **Employee Incentives**
   Our staff, including your advisor, may be compensated with a combination of salary, bonus, and other incentives. While these may include rewards for promoting certain services or products, they are designed to ensure that recommendations remain suitable for you.
5. **Referral Arrangements**
   We may refer clients to, or receive referrals from, other entities (both related and unrelated) and may receive or pay fees for doing so. Full details of any referral arrangements will be disclosed to you as required.
6. **Outside Business Activities**
   Anyone acting on our behalf must receive prior approval before engaging in any outside business activities, such as acting as a company director, to ensure they do not conflict with their responsibilities to clients.
7. **Confidential Information**
   We may, at times, hold confidential information about issuers that we cannot disclose to you, even when recommending or transacting in their securities.
8. **Fair Allocation Policy**
   We follow a strict policy to fairly allocate investment opportunities among clients, ensuring no client is unfairly favoured over another.

Changes to This Schedule
This disclosure may be updated from time to time. You can request a current version at any time from your Investment Advisor, free of charge.

Schedule "D": Borrowing Money to Buy Assets (Leveraging)

You can purchase assets using either your own funds or a mix of your funds and borrowed money. When you use only your own funds, any gain or loss will match the percentage change in the asset's value. However, borrowing money to invest—known as leveraging—can magnify both gains and losses. While leveraging may increase potential returns, it also increases risk. The decision to use borrowed money should be made carefully, based on your personal financial situation and the nature of the assets you are investing in. Leveraged investments involve greater risk than purchases made solely with your own funds

Schedule "E": Additional Information About Your Relationship with GoldKach LLP

This schedule provides important details about your relationship with GoldKach LLP, in addition to what is outlined elsewhere in the Investment Management Agreement. It is intended to ensure you are fully informed, as required by our regulators.

The information here is essential for understanding how we operate and how it may affect you, and we encourage you to review it carefully. In this schedule, any reference to "Funds" specifically refers to the GOLDKACH Funds.

Sign Off:

Signature:	Signature:
Name:	Name:
Title:	Title:
Company:	Company:
Date:	Date: